

FEDERAL MARITIME COMMISSION

Docket No. 17-09

FIAT CHRYSLER AUTOMOBILES NV, FCA US LLC, AND FCA ITALY S.P.A.

v.

**WALLENIOUS WILHELMSSEN LOGISTICS AS, WALLENIOUS WILHELMSSEN
LOGISTICS AMERICAS LLC, EUKOR CAR CARRIERS INC.,
NIPPON YUSEN KABUSHIKI KAISHA, NYK LINE (NORTH AMERICA) INC.,
MITSUI O.S.K. LINES, LTD., MOL (AMERICA) INC.,
KAWASAKI KISEN KAISHA, LTD., "K" LINE AMERICA, INC.,
COMPAÑÍA SUD AMERICANA DE VAPORES S.A., AND HÖEGH AUTOLINERS AS**

**REQUEST FOR ORAL ARGUMENT SUR
THE MOTION *IN LIMINE* OF RESPONDENTS
WALLENIOUS WILHELMSSEN LOGISTICS AS AND
WALLENIOUS WILHELMSSEN LOGISTICS AMERICAS LLC
TO BAR COMPLAINANTS' APRIL 16, 2019 EXPERT REPORT**

Respondents Wallenius Wilhelmsen Logistics AS and Wallenius Wilhelmsen Logistics Americas LLC (collectively, "WWL"), in support of their request for oral argument on their motion *in limine* to bar the April 16, 2019 expert report served by complainants Fiat Chrysler Automobiles NV, FCA USA LLC, and FCA Italy S.p.A. (collectively, "complainants"), respectfully represent as follows:

BACKGROUND

1. On April 24, 2019, WWL filed their motion *in limine* to bar complainants' April 16, 2019 expert report (the "Rowland report").

2. On May 1, 2019, complainants filed their opposition to WWL's motion *in limine* to bar the Rowland report.

3. Pursuant to the provisions of the February 26, 2019 order on complainants' motion to extend the scheduling order, WWL are required to file their expert report(s) by June 3, 2019.

4. In light of the gravamen of WWL's motion *in limine* to bar the Rowland report and the deadline by which WWL are to file their expert report(s), WWL respectfully represent that the presiding officer, Administrative Law Judge Erin M. Wirth, will benefit from hearing oral argument on WWL's motion *in limine* to bar the Rowland report, and that oral argument appreciably will assist the presiding officer in determining to grant the relief requested in WWL's motion *in limine* to bar the Rowland report.

5. WWL further respectfully represent that it is in the interest of justice that oral argument be heard on WWL's motion *in limine* to bar the Rowland report.

6. WWL further respectfully represent that this request for oral argument is not interposed for purposes of delay, but in a good faith effort to assist the presiding officer in determining to grant the relief requested in WWL's motion *in limine* to bar the Rowland report.

WHEREFORE, WWL respectfully request that the presiding officer entertain oral argument WWL's motion *in limine* to bar the Rowland report.

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Respectfully submitted,



Roberto A. Rivera-Soto

Jason A. Leckerman

BALLARD SPAHR LLP

210 Lake Drive East – Suite 200

Cherry Hill, New Jersey 08002-1163

Telephone: (856) 761-3400

riverasotor@ballardspahr.com

leckermanj@ballardspahr.com

Paul M. Heylman

SAUL EWING ARNSTEIN & LEHR LLP

1919 Pennsylvania Av., NW. - Suite 550

Washington, D.C. 20006-3434

Telephone: (202) 343-3422

paul.heyman@saul.com

*Counsel for respondents Wallenius Wilhelmsen
Logistics AS and Wallenius Wilhelmsen Logistics
America LLC*

DATED: May 3, 2019

CERTIFICATE OF SERVICE.

I hereby certify that, on April 24, 2019, true and correct copies of the foregoing request for oral argument was filed electronically with the Secretary of the Federal Maritime Commission, and electronic copies thereof were sent to counsel for complainants in Docket No. 17-09.

DATED: May 3, 2019



Roberto A. Rivera-Soto